

No. _____

In the Supreme Court of the United States

ELIZABETH MIRABELLI, LORI ANN WEST, JANE ROE, JANE BOE,
JOHN POE, JANE POE, JOHN DOE, and JANE DOE,

Applicants,

v.

ROB BONTA, in his official capacity as Attorney General of California; TONY THURMOND, in his official capacity as the California State Superintendent of Public Instruction; LINDA DARLING-HAMMOND, in her official capacity as President of the California State Board of Education, et al.

Respondents.

**EMERGENCY APPLICATION TO VACATE INTERLOCUTORY
STAY ORDER ISSUED BY THE UNITED STATES COURT OF
APPEALS FOR THE NINTH CIRCUIT**

To the Honorable Elena Kagan, Associate Justice of the Supreme Court
of the United States and Circuit Justice for the Ninth Circuit

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PARTIES TO THE PROCEEDING

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Respondents (defendants-appellants below) are Rob Bonta, in his official capacity as Attorney General of California; Tony Thurmond, in his official capacity as the California State Superintendent of Public Instruction; Linda Darling-Hammond, in her official capacity as President of the California State Board of Education; Cynthia Glover Woods, in her official capacity as Vice President of the California State Board of Education; and Francisco Escobedo, Brenda Lewis, James J. McQuillen, Sharon Olken, Gabriela Orozco-Gonzalez, Kim Pattillo Brownson, Haydee Rodriguez, Alison Yoshimoto-Towery, and Anya Ayyappan, all in their official capacities as members of the California State Board of Education.

LIST OF RELATED PROCEEDINGS

United States Court of Appeals (9th Cir.):

Mirabelli v. Bonta, No. 25-8056 (Jan. 5, 2026) (granting stay pending appeal), App.1a-13a.

Mirabelli v. Bonta, No. 25-8056 (Dec. 26, 2025) (granting administrative stay), App.14a-16a.

United States District Court (S.D. Cal.):

Mirabelli v. Olson, No. 23-cv-768 (Dec. 24, 2025) (denying stay pending appeal), App.17a-21a.

¹ The names “Jane Roe,” “Jane Boe,” “John Poe,” “Jane Poe,” “John Doe,” and “Jane Doe” are pseudonyms used to protect the identities of minor children and their families.

Mirabelli v. Olson, No. 23-cv-768 (Dec. 22, 2025) (permanent injunction), App.22a-25a.

Mirabelli v. Olson, No. 23-cv-768 (Dec. 22, 2025) (order granting summary judgment), App.26a-77a.

Mirabelli v. Olson, No. 23-cv-768 (Oct. 15, 2025) (order certifying class), App.78a-90a.

Mirabelli v. Olson, No. 23-cv-768 (Apr. 10, 2025) (denying motion to dismiss action as moot), App.91a-96a.

Mirabelli v. Olson, No. 23-cv-768 (Jan. 7, 2025) (denying motion to dismiss for failure to state a claim), App.97a-122a.

Mirabelli v. Olson, No. 23-cv-768 (Sep. 14, 2023) (order granting preliminary injunction and denying motion to dismiss), App.123a-158a.

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**TO THE HONORABLE ELENA KAGAN, ASSOCIATE JUSTICE OF THE UNITED STATES
SUPREME COURT FOR THE NINTH CIRCUIT:**

Pursuant to Rules 22 and 23 of this Court, and 28 U.S.C. 1651(a), Applicants respectfully request that this Court vacate the Ninth Circuit’s January 5, 2026, interlocutory order staying the district court’s injunction pending appeal (App.1a-13a) and reinstate the district court’s December 22, 2025, permanent injunction (App.22a-25a) pending further proceedings in the Ninth Circuit and this Court. In addition, given the importance and urgency of the issues, the Court may construe this application as a petition for a writ of certiorari before judgment.

* * *

California is requiring public schools to hide children’s expressed transgender status at school from their own parents—including religious parents—and to actively facilitate those children’s “social transition” over their parents’ express objections, even after this Court’s recent decision in *Mahmoud v. Taylor*, 606 U.S. 522 (2025). California parents (including religious parents) are suffering grievously under the state’s regime. Plaintiffs John and Jane Poe were not told that their junior-high daughter was being treated as male at school for most of a year. Only after she attempted suicide did they learn the truth. Unable to afford private school, this devout Catholic family transferred her to another public school, expressly requesting notice of her gender expression and the use of her legal name and biological pronouns. That school refused, citing the State’s policies. To this day, the Poes continue to be left in the dark regarding their daughter’s gender presentation at school.

Teachers also face a direct collision of duty and conscience. Two Christian middle school teachers, Plaintiffs Elizabeth Mirabelli and Lori Ann West, were presented with a list of seven students transitioning genders, six of whose parents were unaware. See 5-Plt.Exs-1123-24 (list).² Their school required them to use one set of names and pronouns in class and another when calling parents. Believing this constituted systematic deception, they sought relief in April 2023 and won a preliminary injunction in September 2023. App.123a-158a. Previously protected, the Ninth Circuit’s stay means they and teachers across California are again forced to lie to parents.

On December 22, 2025, after full discovery and a searching review of the record, the district court entered summary judgment and issued a classwide permanent injunction, on both Free Exercise and Substantive Due Process grounds, relying in significant part on this Court’s decisions in *Mahmoud v. Taylor*, 606 U.S. 522 (2025) and *Wisconsin v. Yoder*, 406 U.S. 205 (1972). App.26a. The court held that parents—including religious parents—have the right to notice and opt out before a school socially transitions their child. A few days later, on December 26, 2025, the Ninth Circuit issued an administrative stay, App.14a-16a, which it shortly thereafter converted into a stay pending appeal of the entire injunction. App.1a-13a.

The Ninth Circuit’s order flouted *Mahmoud*, instead applying an unpublished, divided, Sixth Circuit decision that badly misread both *Mahmoud* and *Yoder* to apply

² The lower court orders are attached in the Appendix hereto. Citations to “Plt.Exs” refers to the Exhibits filed with the Ninth Circuit at ECF No. 11.

only to religious burdens imposed by “curricular requirements.” App.10a-11a (quoting *Doe No. 1 v. Bethel Loc. Sch. Dist. Bd. of Educ.*, No. 23-3740, 2025 WL 2453836, *7 n.3 (6th Cir. Aug. 26, 2025)). Following *Bethel*, the panel concluded that *Mahmoud* does not require schools to allow parents to opt out of “general operational policies that involve no instruction,” no matter their effect on the parents’ right to control the religious upbringing of their children. App.10a-11a (quoting *Bethel*, 2025 WL 2453836, *7 n.3).

The Ninth Circuit’s cursory order should be immediately vacated. As *Mahmoud* recognized, in line with *Yoder*, “government policies” that “substantially interfer[e] with parents’ ability to direct the religious development of their children” impose a cognizable (and common) burden on parents’ religious rights and trigger strict scrutiny 606 U.S. at 546, 554 (internal quotation marks omitted). Nothing about *Mahmoud* is limited to “curricular requirements.” See, e.g., *Yoder*, 406 U.S. at 211 (requiring strict scrutiny where neither the “curriculum or social environment” of modern high schools were consistent with the parent plaintiffs’ religious beliefs) (emphasis added). And California’s policies unquestionably interfere with parents’ ability to direct the religious upbringing of their children.

The Poe parents thus remain completely sidelined by the school—to this day—pursuant to California’s policy that requires withholding information about their daughter’s gender presentation at school. The same is true of Plaintiffs John and Jane Doe, also devout Catholics, who were lied to by each of their daughter’s teachers, and eventually discovered that the school had begun socially transitioning their daughter

as early as *fifth grade*. They are still being denied notice about her current gender expression at school under Defendants’ policy.

Then, as more teachers and parents sought similar relief across the State, more plaintiffs were added, and the case was certified as a class action. App.78a-90a. Twice, Plaintiffs moved for a classwide preliminary injunction against the California Attorney General, the California State Superintendent, and the California State Board of Education members (“Defendants”) because of ongoing, irreparable harm to the named Plaintiffs and putative class. But the Defendants protested, and the district court deferred ruling on the motions. According to California, this case “raise[d] questions of constitutional law on a topic that has garnered significant public interest and litigation,” and if the district court granted an early injunction, it would “be deprived of the kind of fully developed record that should be considered in addressing important issues like those presented here.” D.C. Dkt. 142 at 3, 7.

Discovery solidified that California’s policies violated the Plaintiffs’ constitutional rights. Cross-examination of Defendants’ experts revealed that California’s purported safety rationale was actually *furthered* by including parents in decision making. See App.28a-30a; App.41a-45a. Indeed, one defense expert specifically opined that referring to a child “as a chosen gender in one environment, but not in a different setting, can be ‘harmful’ in that it can ‘increase dysphoria, [and] increase mental health risks.’” App.51a (quoting 17-Plt.Exs-4207-08); see also 18-Plt.Exs-4504-05 (<https://bit.ly/4pyclKG>). Thus, all of the harm here was (and is) borne by the Plaintiffs, including the Poe Family who have long been pleading for relief “now” and

without “[a]ny further delay” as they seek to save their daughter’s life. 5-Plt.Exs-1247.

The California Department of Education’s (“CDE”) mandate flows from its interpretation of the Privacy Clause of the California Constitution. Cal. Const. art. I, § 1. Under the Privacy Clause, an invasion of privacy is permitted so long as there is a “sufficient countervailing interest,” *Hill v. NCAA*, 865 P.2d 633, 657 (Cal. 1994), or, as Defendants described it, “a compelling need to do so.” App.8a. The district court observed this is the “very definition of a discretionary exemption.” App.149a; App.70a-71a n.13 (citing *Fulton v. City of Philadelphia*, 593 U.S. 522, 533 (2021)). Nevertheless, the Ninth Circuit rejected the Teacher-Plaintiffs’ Free Exercise claim without even mentioning *Fulton*. Instead, it held that California’s policies do not explicitly require teachers to directly lie and so there was no burden on religion. See App.11a (quoting App.146a).

Lastly, on the Substantive Due Process claim, the Ninth Circuit panel summarily followed *Foote v. Ludlow School Committee*, 128 F.4th 336 (1st Cir. 2025) (per curiam), *pet. for cert. pending* (No. 25-77), stating only that Plaintiffs were not likely to succeed because “the challenged policies here appear to be analogous to the policy at issue in *Foote*.” App.9a-10a. And despite an explicit email from Child Poe’s school to her parents rejecting their objections and stating that “[b]ecause of these legal protections, we will be addressing your student by their preferred name in the classroom and school setting,” 3-Plt.Exs-609, the Ninth Circuit panel held that they “will not be substantially injured from the issuance of a stay.” App.13a.

Challenges to policies like California’s have been percolating for years and “present[] a question of great and growing national importance.” *Parents Protecting Our Children, UA v. Eau Claire Area Sch. Dist.*, 145 S. Ct. 14, 14 (2024) (Alito, J., dissenting). Some include heartbreaking allegations of attempted suicide. See, e.g., *Kaltenbach v. Hilliard City Schs.*, No. 24-3336, 2025 WL 1147577, *2 (6th Cir. Mar. 27, 2025) (Thapar, J., concurring). Others concern staff secretly providing a student with a chest binder to wear during the day—which can permanently warp a ribcage. See *Lavigne v. Great Salt Bay Cmty. Sch. Bd.*, 146 F.4th 115, 119 (1st Cir. 2025). Indeed, with six separate certiorari petitions relating to similar policies having been presented to this Court, see §§ I.B.3, III, *infra*, a litany of different tragic stories have been told, all preventable.

Accordingly, the district court’s injunction below should not have been controversial. Its provisions are tailored to the harm suffered, prohibiting the state from: (1) requiring or permitting school staff to mislead parents about their child’s gender presentation at school; (2) requiring or permitting school staff to use transgender names or pronouns over parental objection; (3) requiring religiously objecting school staff to use transgender names and pronouns in school when that use is concealed from the child’s parents; and (4) interfering with school staff communicating to parents that their child has manifested gender incongruity. The order also requires the state to (5) insert a short statement reflecting the court’s holding in the state’s instructional training for teachers. App.23a-25a. And while the panel below misread the certified class to include “every” parent and public school

employee in California, the actual certified class comprises only those California parents and public school employees who object to, or submit a religious opt-out from, Defendants’ parental exclusion policies. App.80a.

As the district court noted, this Court “has historically and repeatedly declared that parents have a right, grounded in the Constitution, to direct the education, health, and upbringing, and to maintain the well-being of, their children.” App.137a. Yet the Ninth Circuit’s stay—premised largely on its view of the merits—squarely evades *Mahmoud* and *Yoder* and strips parents of their core authority with respect to an issue with significant religious and developmental impact: that is, a child’s growth into adulthood. App.1a-16a.

In light of the order’s violation of controlling Ninth Circuit precedent, Plaintiffs are also today filing a motion for en banc reconsideration of the stay order. See 9th Cir. Gen. Ord. ¶ 6.11; 9th Cir. Rule 27-10. But California parent’s religious and fundamental parental rights—and the health and safety of their children—are too precious for them to delay seeking relief from this Court. This Court should vacate the Ninth Circuit panel’s cursory order and permit the district court’s permanent injunction to take effect.

JURISDICTION

Applicants seek review of the Ninth Circuit’s grant of interlocutory stay pending appeal. The Court has authority to grant this application under the All Writs Act, 28 U.S.C. 1651(a), and Rules 22 and 23 of this Court.

BACKGROUND AND PROCEDURAL HISTORY

A. The California Department of Education (“CDE”) and its Adoption of Parental Exclusion Policies.

In January 2016, the California Department of Education (“CDE”) published a new Legal Advisory and an accompanying FAQs page “regarding application of California’s antidiscrimination statutes to transgender youth in schools.” App.104a; App.131a. The purpose of the Legal Advisory was “to provide California school districts with updated guidance on the minimum requirements for compliance with California’s prohibition on gender identity discrimination.” 9-Plt.Exs-2124 (<https://bit.ly/49hQT6G>). The FAQs also linked to model board policies and model administrative regulations. 9-Plt.Exs-2136 (<https://bit.ly/4j9ROdA>). Concerning both the FAQs and the linked model policies, the Legal Advisory stated that “[i]t is recommended that these materials are reviewed by superintendents, principals, administrators and [others] ... to ensure compliance with the educational equity and nondiscrimination requirements of” California law. 9-Plt.Exs-2125.

The CDE’s interpretation of California law is binding on school districts. The California Constitution makes public schooling a responsibility of the state. Cal. Const. art. IX, §§ 5-6. The public school system is managed through the California Department of Education, Cal. Const. art. IX, §§ 2, 7; Cal. Educ. Code § 33301, which has “general supervision” over school districts. 9-Plt.Exs-2239-40; 9-Plt.Exs-2251-52 (PMQ Depo.). The State “is obliged to intervene” when local school districts go awry. *Butt v. California*, 842 P.2d 1240, 1256 (Cal. 1992). Thus, if the CDE investigates and determines a school district is out of compliance with any aspect of California law, it

can and must order the school district to comply. Cal. Code Regs. tit. 5, § 4670(a)(3); 9-Plt-Exs-2002-03, 2070-72. School districts have “a ministerial duty under state law to comply with the CDE’s corrective actions.” 9-Plt.Exs-2143-50.

In the FAQs, the CDE stated that: (1) “school districts should accept and respect a student’s assertion of their gender identity where the student expresses that identity at school”;³ (2) “schools *must* consult with a transgender student to determine who can or will be informed of the student’s transgender status, if anyone, including the student’s family”; (3) “schools are *required* to respect the limitations that a student places on the disclosure of their transgender status, including not sharing that information with the student’s parents” except in the “very rare” situations where “there is a specific and compelling ‘need to know’”; and (4) “[a] transgender student’s right to privacy does not restrict a student’s right to openly discuss and express their gender identity or to decide when or with whom to share private information.” 9-Plt.Exs-2130-33. Plaintiffs and the district court collectively refer to these specific statements in the FAQs as the CDE’s “Parental Exclusion Policy.” 1-Plt.Exs-17.

The California Attorney General also posted a “State of Pride” page on the California DOJ website. App.81a. It states: “You have the right to disclose—or not disclose—your gender identity on your own terms, regardless of your age,” and that

³ California prohibits discrimination based on “gender identity” in public schools, Cal. Educ. Code § 220, with gender identity defined as “a person’s identity based on the individual’s stated gender identity ... without regard to any contrary statement by ... a family member.” Cal. Code Regs. tit. 22, § 83001(g)(2).

no school has the right to “out” a student “to anyone without your permission, including your parents.” 10-Plt.Exs-2383-89, 2474, 2481-85 (<https://bit.ly/49ayGrt>). He subsequently also published a “Legal Alert” condemning “Forced Disclosure Policies” as illegal under various aspects of California law. 10-Plt-Exs-2500-03 (<https://bit.ly/4syIR26>).

The CDE states that its Parental Exclusion Policy is rooted in the Privacy Clause of the California Constitution. App.36a (quoting Cal. Const. art. I, § 1). This Privacy Right has two components: “(1) interests in precluding the dissemination or misuse of sensitive and confidential information (‘informational privacy’); and (2) interests in making intimate personal decisions or conducting personal activities without observation, intrusion, or interference (‘autonomy privacy’).” *Hill v. NCAA*, 865 P.2d 633, 654 (Cal. 1994). Like any other person, minors have certain autonomy privacy rights, *Am. Acad. of Pediatrics v. Lungren*, 940 P.2d 797, 814-15 (Cal. 1997) (abortion), and certain informational privacy rights. *In re M.T.*, 326 Cal. Rptr. 3d 808, 820-24 (Cal. App. 2024) (gender identity); *Planned Parenthood Affils. v. Van de Kamp*, 226 Cal. Rptr. 361, 378-80 (Cal. App. 1986) (sexual intimacy). However, even if privacy rights are implicated, there is no violation of the right to privacy when there is a “sufficient countervailing interest” warranting the privacy invasion. *Hill*, 865 P.2d at 657.

B. Plaintiff Parents and Teachers.

Plaintiffs Elizabeth Mirabelli, Lori Ann West, Jane Boe, and Jane Roe are teachers from the Escondido Union School District (“EUSD”), a K-8 school district located in San Diego County that serves roughly 14,000-16,000 students. App.67a-

70a, 124a; see 22-Plt.Exs-5518-21, 5540 (Complaint); 4-Plt.Exs-966-1051; 5-Plt.Exs-1053-1238 (declarations). They alleged that forced compliance with the policies violated their Free Exercise and Free Speech rights and sought relief under 42 U.S.C. 1983. As they explained, “[u]nder the ‘principle of subsidiarity,’ it is very important that educators do not preempt the role of parents,” because “participants in the process of education are only able to carry out their responsibilities in the name of the parents, with their consent and, to a certain degree, with their authorization.” 4-Plt.Exs-969 (quoting Giuseppe Cardinal Versaldi, *“Male and Female He Created Them”: Towards a Path of Dialogue on the Question of Gender Theory in Education*, Congregation Cath. Educ. (Feb. 2, 2019)). The district court found that their religious objections were “well-articulated, integrated, and comprehensive.” App.145a.

The Poe Family and the Doe Family, both devoutly Catholic, later joined this lawsuit as Parent-Plaintiffs. App.58a-60a; App.105a-106a; see 5-Plt.Exs-1239-1313; 3-Plt.Exs-605-10 (declarations). The Poe Family’s daughter (“Child Poe”) attended Clovis Unified School District (“CUSD”) schools and began identifying as transgender upon entering seventh grade in Fall 2022. She socially transitioned for that entire academic year without her parents’ knowledge or consent. In March 2023, her parents obtained counseling for her because they could tell she was unwell but did not know why. Only when Child Poe unsuccessfully attempted suicide six months later did doctors treating her inform her parents about her ongoing gender transition at school.

After Child Poe was released from the hospital, her parents moved her to CUSD’s online public school and then to Yosemite Valley Charter School (“YVCS”)—an online

public charter school. But the CDE's Parental Exclusion Policy dogged them at each step. Because Mr. and Mrs. Poe cannot afford to place their daughter in a private school, they have repeatedly instructed YVCS that they do not consent to her transition. But YVCS has ignored their instructions.

The Doe Family's daughter ("Child Doe") attends Pasadena Unified School District ("PUSD") schools. She began identifying as transgender and presenting as a boy at school, without informing her parents, sometime during her fifth-grade year starting Fall 2020. Her transgender identity intensified when she started sixth grade. In September 2021, Child Doe informed her parents she was transgender. Her parents suggested that they should, as a family, take time to think about and discuss her feelings before taking any action. As a result, Mr. and Mrs. Poe believed Child Doe's school was not actively socially transitioning her.

The next year, when their daughter was in seventh grade, Child Doe's parents discovered that her school had been socially transitioning her without their permission. They confronted the principal, who denied the transitioning was occurring at school even while admitting that, if it were, it would be kept secret pursuant to the CDE's Parental Exclusion Policy. Towards the end of seventh grade, Child Doe appeared to desist from the identity and informed her parents that she was not transgender. But then, near the end of eighth grade, her parents discovered she had re-transitioned at school. They moved her to a new school within PUSD because they cannot afford private schooling. Presently, they believe she has re-desisted but

cannot know because PUSD continues to follow the CDE's Parental Exclusion Policies.

C. Procedural History.

Plaintiffs Mirabelli and West filed this action on April 27, 2023, and promptly moved for a preliminary injunction. D.C. Dkt. 1, 5. In September 2023, the district court held Mirabelli and West had standing to sue the CDE Defendants, granted a preliminary injunction, and denied the CDE Defendants' motion to dismiss. App.123a. Although the preliminary injunction protected only Mirabelli and West, EUSD felt compelled to apply its reasoning districtwide. When EUSD advised the Attorney General of its plan, he warned EUSD the plan was illegal and could prompt an enforcement action. 23-Plt.Exs-5987-88; 12-Plt.Exs-2892-96.

Later, with other teachers (Jane Boe and Jane Roe) and parents (the Poe Family and the Doe Family) seeking to join the action, in June 2024, Plaintiffs moved to amend the complaint to add plaintiffs, add Attorney General Bonta, and convert the case into a class action. D.C. Dkt. 118. After Plaintiffs filed the operative Second Amended Class Action Complaint in August 2024, 22-Plt.Exs-5493-613, they immediately moved for class certification. D.C. Dkt. 136. Plaintiffs also filed an early motion for summary judgment and entry of a permanent injunction or, alternatively, for a classwide preliminary injunction. D.C. Dkt. 137. The Attorney General requested that both motions be stayed pending discovery, which the district court granted. D.C. Dkt. 142, 144, 221.

Shortly thereafter, the Attorney General and CDE Defendants moved to dismiss the Second Amended Complaint on standing grounds, D.C. Dkt. 150, 156, and

Plaintiffs filed a motion for a classwide preliminary injunction motion. D.C. Dkt. 153. The district court vacated the hearing on the preliminary injunction motion and addressed only the motions to dismiss. See D.C. Dkt. 240. The district court found standing as to all Defendants and denied the motions to dismiss. App.97a.

In the interim, to address Parental Notification Policies issued by a half-dozen school districts, see D.C. Dkt. 220-1 (collecting policies), California passed AB 1955, a new statute that prohibited school districts from adopting any policy that provides parents notice of their child’s gender transition, and that prohibited school districts from requiring any individual teacher to do so—“unless otherwise required by state or federal law.” 2024 Cal. Stats. ch. 95 (creating Cal. Educ. Code §§ 220.1, 220.3, 220.5). In January 2025, the CDE Defendants removed their Legal Advisory and FAQs and replaced them with a new webpage tied to AB 1955. 9-Plt.Exs-2153-55 (<https://bit.ly/4pafHmU>).

The new webpage quoted AB 1955’s legislative findings, including that “[p]upils have a constitutional right to privacy when it comes to sensitive information about them,” and that “[p]olicies that require outing pupils without their consent violate pupils’ right to privacy.” But the webpage explained that “AB 1955 does not mandate non-disclosure” and that “AB 1955 does not specifically address whether a school employee may voluntarily disclose any information related to a pupil’s ... gender identity ... to any other person without the pupil’s consent.” Because Defendants did not abandon the content of the FAQs or how they applied to Plaintiffs, the district court found the case not moot. App.18a-19a, 32a-33a; App.91a-96a.

D. The District Court's Permanent Injunction and the Ninth Circuit's Stay Order.

At the end of extensive discovery, including twenty-five depositions, in July 2025 Plaintiffs filed renewed motions for class certification and for summary judgment and entry of a classwide permanent injunction. 4-Plt.Exs-887-965. Although EUSD Defendants filed a cross-motion for summary judgment, State Defendants did not. The summary judgment hearing was ultimately set for November 17, 2025. In the interim, the district court severed and stayed the claims against EUSD, 1-Plt.Exs-63-66, and certified a modified class. App.78a-90a.

The class further contained four administrative subclasses, based around the four substantive claims: (1) school employees who “object” to complying with the Parental Exclusion Policy; (2) employees who “submit a request for a religious exemption or opt-out” from complying with the same; (3) parents who “object” to the Parental Exclusion Policy’s application “against them”; and (4) parents who “submit a request for a religious exemption or opt-out” from the same. App.89a-90a.

At the November hearing, Defendants conceded there was no genuine dispute of material fact. App.35a-36a (quoting 2-Plt.Exs-405). On December 22 the district court granted Plaintiffs’ summary judgment motion, App.26a-77a, and entered a classwide permanent injunction for the four certified subclasses. App.22a-25a. Accordingly, the injunction contained four parts tailored to the practical manner in which the Plaintiffs had been harmed. The Defendants were enjoined from enforcing “(1) the Privacy Provision of the California Constitution, Cal. Const. art. I, § 1; [or] (2) any other provision of California law,” so as to: (a) permit a teacher to lie or mislead a

parent about their child's gender presentation at school; (b) permit a teacher to socially transition a child over their parent's objection; (c) require a teacher to socially transition a child without their parent's knowledge; and (d) prevent a teacher from informing a parent about the child's social transition. App.24a.

The injunction separately required a statement prominently placed in teacher training materials providing that: "Parents and guardians have a federal constitutional right to be informed if their public school student child expresses gender incongruence. Teachers and school staff have a federal constitutional right to accurately inform the parent or guardian of their student when the student expresses gender incongruence. These federal constitutional rights are superior to any state or local laws, state or local regulations, or state or local policies to the contrary." App.24a-25a. At base, the order simply and modestly (i) allows teachers to communicate truthfully with parents about what name and pronouns their child is using at school, and (ii) gives parents the ability to opt out of Parental Exclusion Policies.

That evening, Defendants moved for a stay pending appeal, which the district court denied two days later on December 24. App.17a. On that same day, Defendants moved the Ninth Circuit for a stay pending appeal. On December 26, a Ninth Circuit panel⁴ granted an administrative stay, App.14a, and on January 5, 2026, a stay pending appeal. App.1a.

⁴ In the Ninth Circuit, the Chief Judge does not sit on the motions panel, but in cases of "exceptional importance," the Ninth Circuit immediately draws a merits panel and

REASONS FOR GRANTING THE APPLICATION

Under the All Writs Act, this Court “may issue all writs necessary or appropriate” that aid its jurisdiction and are permitted by law. 28 U.S.C. 1651(a). To obtain vacatur of a stay order, an applicant “ordinarily must show (i) a reasonable probability that this Court would eventually grant review and a fair prospect that the Court would reverse, and (ii) that the applicant would likely suffer irreparable harm absent the stay.” *Merrill v. Milligan*, 142 S. Ct. 879, 880 (2022) (Kavanaugh, J., concurring) (citing *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam)); see *United States v. Texas*, 144 S. Ct. 797, 797-78 (2024) (Barrett, J., concurring) (factors apply to vacatur of stay). “In deciding whether to [vacate] a stay pending appeal or certiorari, the Court also considers the equities (including the likely harm to both parties) and the public interest.” *Id.* (Kavanaugh, J., concurring) (citing *Hollingsworth*, 558 U.S. at 190).

This Court is likely to grant review in the context of a conflict among the lower courts on “an important federal question,” when necessary as “an exercise of this Court’s supervisory power,” or if the issue “has not been, but should be, settled by this Court.” Supreme Court Rule 10. “[T]ry[ing] to predict whether four Justices would vote to grant certiorari ... is always a difficult and speculative inquiry.” *San Diegans for Mt. Soledad Nat’l War Mem’l v. Paulson*, 548 U.S. 1301, 1303 (2006) (Kennedy, J., in chambers). Applicants satisfy this standard.

assigns the motion to it. 9th Cir. Gen. Ord. ¶¶ 6.2(a), 6.4(d). Since Chief Judge Murguia sat on the panel, the panel below is ostensibly the merits panel.

I. There is a Reasonable Probability that the Court Would Consider this Case Certworthy and a Fair Prospect it Would Reverse.

A. The Free Exercise Clause protects parents’ and teachers’ rights to opt out of California’s exclusion policies.

1. Parents’ Free Exercise Claim. “At its heart, the Free Exercise Clause of the First Amendment protects ‘the ability of those who hold religious beliefs of all kinds to live out their faiths in daily life through the performance of’ religious acts.” *Mahmoud v. Taylor*, 606 U.S. 522, 546 (2025) (quoting *Kennedy v. Bremerton Sch. Dist.*, 597 U.S. 507, 524 (2022)). Drawing on both *Meyer v. Nebraska*, 262 U.S. 390 (1923), and *Pierce v. Society of Sisters*, 268 U.S. 510 (1925), fifty years ago, this Court held that a rule impinging on parents’ rights to control “the *religious* upbringing and education of their minor children” triggers strict scrutiny under the Free Exercise Clause. *Wisconsin v. Yoder*, 406 U.S. 205, 231 (1972) (emphasis added). Most recently, the Court has instructed that when the government “‘substantially interfer[es] with the religious development’ of the parents’ children,” then “we need not ask whether the law at issue is neutral or generally applicable before proceeding to strict scrutiny.” *Mahmoud*, 606 U.S. at 564 (quoting *Yoder*, 406 U.S. at 218).

In *Yoder*, Amish parents objected to having their children attend high school and be in an environment “hostile to Amish beliefs” where the children would be “pressure[d] to conform” to worldviews in conflict with those beliefs. 406 U.S. at 211. The Court held that strict scrutiny applied because “the modern high school is not equipped, *in curriculum or social environment*, to impart the values promoted by Amish society.” *Id.* at 211-12 (emphasis added). In *Mahmoud*, religious parents objected to the school reading story books to their children that taught “that it is

hurtful, perhaps even hateful, to hold the view that gender is inextricably bound with biological sex.” 606 U.S. at 553. The books were “designed to present certain values and beliefs as things to be celebrated and certain contrary values and beliefs as things to be rejected.” *Id.* at 550. Accordingly, they “carr[ied] with them ‘a very real threat of undermining’ the religious beliefs that parents wish to instill in their children.” *Id.* at 553-54 (quoting *Yoder*, 406 U.S. at 218). The Court then explained that strict scrutiny applies when, as there, “the burden imposed is of the *same character* as that imposed in *Yoder*.” *Id.* at 564 (emphasis added).

Here, the schools’ facilitation of a secret gender transition for young children, which may have permanent and life-altering consequences, is orders of magnitude worse than the burdens imposed in *Mahmoud* and *Yoder*. Yet relying on a fractured, unpublished, Sixth Circuit opinion, the Ninth Circuit held that *Mahmoud* is “a narrow decision focused uniquely on coercive ‘curricular requirements’,” and does not require an opt out of “general operational policies that involve no instruction.” App.10a-11a (quoting *Doe No. 1 v. Bethel Loc. Sch. Dist. Bd. of Educ.*, No. 23-3740, 2025 WL 2453836, at *7 n.3 (6th Cir. Aug. 26, 2025)). But as concurring Judge Larsen explained, “[w]hether a policy applies in the school classroom, lunchroom, or restroom, it may still substantially interfere with parents’ rights to instill in their children the principles of their faith.” *Bethel*, 2025 WL 2453836, *12-13 (Larsen, J., concurring). This Court has already recognized the same after *Mahmoud. Miller v. McDonald*, -- S. Ct. --, No. 25-133, 2025 WL 3506969 (2025) (vacating lower court judgment against Amish parents’ Free Exercise challenge to application of New York student vaccine mandate and remanding

for reconsideration in light of *Mahmoud*). This Court should recognize the same again here and vacate the Ninth Circuit’s stay in light of *Mahmoud*.

2. Teacher’s Free Exercise Claim. Turning to broader Free Exercise Clause analysis, a law that burdens religion is subject to strict scrutiny if it contains “a mechanism for individualized exemptions.” *Fulton v. City of Philadelphia*, 593 U.S. 522, 533 (2021). This is true “regardless whether any exceptions have been given,” because the mere “availability of exceptions ... ‘invite[s]’ the government to decide which reasons for not complying with the policy are worthy of solicitude.” *Id.* at 537.

Here, the Privacy Clause of the California Constitution, which is the basis for the CDE’s Parental Exclusion Policy, is rife with “individualized exemptions” which have been granted liberally. The Privacy Clause protects against “the dissemination or misuse of sensitive and confidential information.” *Hill v. NCAA*, 865 P.2d 633, 654 (Cal. 1994). But even if there is an invasion of privacy, courts ask whether “the invasion of privacy is justified because it substantively furthers one or more countervailing interests.” *Id.* at 859. Under this analysis, countervailing interests must be “legally authorized and socially beneficial,” with their “relative importance ... determined by their proximity to the central functions of a particular ... enterprise” and “the extent to which [the conduct] furthers legitimate and important competing interests.” *Am. Acad. of Pediatrics v. Lungren*, 940 P.2d 797, 811 n.15 (Cal. 1997).

In its specific application of the Privacy Clause in its Parental Exclusion Policy, the CDE stated that parents can be informed of their child’s gender transition if they have “a specific and compelling ‘need to know.’” 9-Plt.Exs-2132. On the California DOJ

website, it was explained that, “under some limited circumstances your school can tell your parents something about your ... gender identity—but only if they have a very good reason for doing so. It really depends on the circumstances.” 10-Plt.Exs-2474, 2484. The CDE did not provide any parameters for this “need to know” test, but the California DOJ explained that a “good reason” does not include “to punish you, harass you, discriminate against you, or retaliate against you for complaining about something.” 10-Plt.Exs-2474. As the district court found, the standardless nature of this “need to know” or “good reason” test necessarily triggers strict scrutiny. App.71a, 129a (citing *Fulton*, 593 U.S. at 533).

The Ninth Circuit’s only basis for evading *Fulton* was the ambiguous statement that “the district court’s ruling ... is predicated on the challenged policies ‘requir[ing] teachers to withhold’ information about a student’s gender nonconformity ‘with the knowledge that the information will be impossible for the parents to obtain from the school,’” but that the “premise ... that these policies categorically forbid disclosure of information ... is contradicted by the record.” App.11a (quoting App.146a). The quoted portions come from the district court’s September 2023 preliminary injunction order in which it rejected the defense argument that there was no burden on religion because “the policy does not require plaintiffs to ‘lie’ to parents,” and cited the hearing transcript. App.146a (citing 4-Plt.Exs-6091-92). That discussion shows that the district court did not adopt a false premise, but correctly apprehended that parents do not get to know about their child’s gender transition unless the government decides they have a “compelling” “need to know.”

Indeed, in discovery, Plaintiffs attempted to confirm who makes the decision, whether the analysis is truly standardless, and whether the discretion is cabined in any way. Defendants responded by confirming that the analysis is truly standardless: “Whether there is a compelling ‘need to know’ would necessarily vary based on all of the factors present in a specific situation. It is not possible to speculate about every potential scenario where it might be warranted to disclose a pupil’s gender nonconforming status to a parent over the pupil’s objection.” 21-Plt.Exs-5398. Under *Fulton*, this “mechanism for individualized exemptions” triggers strict scrutiny. 593 U.S. at 533.

3. Strict Scrutiny. To satisfy “strict scrutiny,” the “government must demonstrate that its policy advances ‘interests of the highest order’ and is narrowly tailored to achieve those interests.” *Mahmoud*, 606 U.S. at 565 (quoting *Fulton*, 593 U.S. at 541). “[A]s a practical matter,” strict scrutiny “is fatal in fact absent truly extraordinary circumstances.” *Free Speech Coal., Inc. v. Paxton*, 606 U.S. 461, 485 (2025).

Here, the Ninth Circuit never engaged in a strict scrutiny analysis. But as the district court held, the Defendants first “identif[ied] a general interest in providing a ‘safe’ learning environment.” App.63a. But after reviewing all of the expert evidence, the district court concluded that “the notion of a learning environment where students are insulated from their parents’ discovery of a nonconforming gender identity is somehow better for a child, is yet to be proven,” App.64a, because Defendants’ experts conceded that “those studies do not exist in either direction regarding negative outcomes or benefits.” App.50a (quoting 19-Plt.Exs-4930-31). Even if Defendants’

evidence supported them,⁵ the law presumes “fit parents act in the best interests of their children,” *Troxel v. Granville*, 530 U.S. 57, 68 (2000) (plurality), due to natural bonds of affection. *Parham v. J. R.*, 442 U.S. 584, 602 (1979). This presumption can be overcome only by a *judicial finding* that the parents are not acting in their child’s best interest, *Santosky v. Kramer*, 455 U.S. 745, 768-69 (1982), or “[i]n an emergency situation.” *Mueller v. Auken*, 700 F.3d 1180, 1187 (9th Cir. 2012). That presumption is not overcome simply because a child disagrees with her parents’ decision. *Parham*, 442 U.S. at 603. Indeed, parental unfitness cannot be presumed categorically. *Stanley v. Illinois*, 405 U.S. 645, 657 (1972). And even were student safety a compelling concern, as the district court held, California’s mandatory reporting regime is more than adequate to protect students from actual abuse, but not adequate for California’s purpose of protecting children’s so-called “privacy.” App.30a; Cal. Welf. & Inst. Code § 15630.

The Defendants also identified “a compelling governmental interest in protecting students’ privacy as to their bodily autonomy, even with respect to their parents.” App.64a. Indeed, the point of Parental Exclusion Policies has always been to comply with the Privacy Clause of the California Constitution—not student safety. App.28a-31a; see 9-Plt.Exs-2132-33; 10-Plt.Exs-2483-84. But, as the district court further held,

⁵ In their Ninth Circuit briefing, Defendants notably ignored their own experts and cited online articles because not even their experts agree that a parent is unfit if he or she does not affirm a child’s desired gender transition. App.29a-30a; 1-Plt.Exs-15-16; 19-Plt.Exs-4741-42; 17-Plt.Exs-4309-12, 4315-16.

in so contending, Defendants “misapprehend the supremacy of federal constitutional rights.” App.31a.

4. Breadth of Relief. Plaintiffs asked the district court to grant class certification, while also explaining that California’s Parental Exclusion Policies could be facially invalidated. See Tobias B. Wolff, *Discretion in Class Certification*, 162 U. Pa. L. Rev. 1897, 1938 & n.217 (2014) (noting the similarity between the two). In light of the presumptions in favor of parents, across-the-board restrictions on parental rights are particularly appropriate for facial invalidation. See, e.g., *Troxel*, 530 U.S. at 77 (Souter, J., concurring); *Stanley*, 405 U.S. at 654 (holding statute invalid that presumed all unwed fathers were unfit despite the fact some unwed fathers are unfit); *Lee v. Poudre Sch. Dist. R-1*, 135 F.4th 924, 937 (10th Cir. 2025) (McHugh, J., concurring) (Parental Exclusion Policies “turn[] this presumption on its head”).

The district court first certified a class, App.78a-90a, and then entered a classwide injunction. App.22a-77a. The Ninth Circuit, in turn, held that it had “serious concerns” that not all members of the class had standing. App.6a-7a.⁶ Why this would be the case is unclear. The district court found that all class members have materially identical Article III injury because the Parental Exclusion Policies directly interfere with all class member parents’ rights to direct their children’s upbringing, education, and medical treatment and with all Plaintiffs’ First Amendment rights. App.83a. To

⁶ Without explanation, the Ninth Circuit also stated that the district court failed to undertake a “rigorous analysis” before certifying the class. App.7a. But the parties fully briefed the issue and the Court engaged in a lengthy analysis of the question. App.78a-90a.

reach its contrary conclusion, the panel relied on decisions that clash with the informational injury doctrine and are manifestly dubious. After all, a legally cognizable injury is an “inability to rely on the validity of the information” provided. *Davidson v. Kimberly-Clark Corp.*, 889 F.3d 956, 971 (9th Cir. 2018); see also *Wilderness Soc., Inc. v. Rey*, 622 F.3d 1251, 1258-59 (9th Cir. 2010) (discussing doctrine and collecting cases).

Indeed, in *Mahmoud*, the Court recognized that parents suffer a cognizable burden when public schools substantially interfere with their efforts to direct the religious upbringing of their children. 606 U.S. at 547. The same is thus true here, and the injury is common to both named Plaintiffs and members of the certified class. Nor is the injury here merely informational. The policies transfer the decision whether and how to respond to a child’s gender incongruence from parents to schools even though a child’s presentation of gender incongruence does not by itself mean that social transition is appropriate. App.48a-54a.

5. This Case is Certworthy. There is a reasonable probability that four justices would grant certiorari and a fair prospect that five would reverse because this Court’s decisions in *Mahmoud* and *Fulton* are clear and unambiguous. The Sixth Circuit’s and now the Ninth Circuit’s attempt to cabin *Mahmoud* to “curricular instruction” overlooks that parental religious direction over their public-school children is a “robust” “principle of general applicability” that extends beyond “discrete educational requirement[s] or element[s] of the curriculum” to a public school’s “rules and standards of conduct on its students.” *Mahmoud*, 606 U.S. at 557-558; see also *Yoder*,

406 U.S. at 212 (holding Amish families burdened because “the modern high school is not equipped, *in curriculum or social environment*, to impart the values promoted by Amish society”) (emphasis added).

When the lower courts get the law so egregiously wrong, this Court has not hesitated to intervene. See, e.g., *Wis. Legislature v. Wis. Elections Comm’n*, 595 U.S. 398, 401 (2022) (per curiam) (“Summarily correcting the error gives the court sufficient time”); *Tandon v. Newsom*, 593 U.S. 61, 64 (2021) (per curiam) (“This is the fifth time the Court has summarily rejected the Ninth Circuit’s analysis”); *James v. City of Boise*, 577 U.S. 306, 307 (2016) (per curiam) (“The Idaho Supreme Court, like any other state or federal court, is bound by this Court’s interpretation of federal law”); *Marmet Health Care Ctr., Inc. v. Brown*, 565 U.S. 530, 532 (2012) (per curiam) (the “court’s interpretation of the FAA was both incorrect and inconsistent with clear instruction in the precedents of this Court”). In light of how poorly the Sixth Circuit and the Ninth Circuit misunderstood *Mahmoud*, this Court should vacate the Ninth Circuit’s stay order before the error spreads. Accord *Miller*, 2025 WL 3506969.

B. Substantive Due Process protects parents’ rights to opt out of California’s exclusion policies.

1. Background on Parents’ Rights. Under the Fourteenth Amendment’s protection of liberty, every American has the right “to marry, establish a home and bring up children.” *Meyer v. Nebraska*, 262 U.S. 390, 399 (1923). A necessary corollary of the right to *have* a family is that parents have “the right of control” over their children. *Id.* at 400. “[C]onstitutional interpretation has consistently recognized that the parents’ claim to authority in their own household to direct the rearing of their

children is basic in the structure of our society.” *Ginsberg v. New York*, 390 U.S. 629, 639 (1968). “Traditionally at common law, and still today, unemancipated minors lack some of the most fundamental rights of self-determination—including even the right of liberty in its narrow sense, i.e., the right to come and go at will. They are subject, even as to their physical freedom, to the control of their parents or guardians.” *Vernonia Sch. Dist. 47J v. Acton*, 515 U.S. 646, 654 (1995). This Court, however, has explained that parental control is not a limit on the child’s liberty—but *a fulfillment of it*:

[T]he tradition of parental authority is not inconsistent with our tradition of individual liberty [for a child]; rather, the former is one of the basic presuppositions of the latter. Legal restrictions on minors, especially those supportive of the parental role, may be important to the child’s chances for the full growth and maturity that make eventual participation in a free society meaningful and rewarding.

Bellotti v. Baird, 443 U.S. 622, 638-39 (1979) (plurality).

Even in the context of federal rights, the Court has only permitted the overriding of parental *consent* through a “judicial bypass” mechanism. *Hodgson v. Minnesota*, 497 U.S. 417, 479 (1990) (Scalia, J., concurring in part). Indeed, “[a]lthough the Court has held that parents may not exercise an absolute, and possibly arbitrary, veto over [certain] decision[s], it has never challenged ... that ... decision should be made after notification to and consultation with a parent.” *Id.* at 445 (cleaned up).

At the time of the ratification of the Fourteenth Amendment, “[t]he concept of total parental control over children’s lives extended into the schools.” *Brown v. Ent. Merchs. Ass’n*, 564 U.S. 786, 830 (2011) (Thomas, J., dissenting). Traditionally, parents “delegate[] to school officials their own control of [their child]” under the doctrine of *in*

loco parentis “under circumstances where the children’s actual parents cannot protect, guide, and discipline them.” *Mahanoy Area Sch. Dist. v. B. L.*, 594 U.S. 180, 192 (2021). However, *in loco parentis* is not “consonant with compulsory education laws.” *Vernonia*, 515 U.S. at 655; see *Mahanoy*, 594 U.S. at 216 (Thomas, J., dissenting). Thus, in the modern context of “compulsory” education, parents must *only* be “treated as having relinquished the measure of authority that the schools must be able to exercise in order to carry out their state-mandated educational mission.” *Mahanoy*, 594 U.S. at 198-200 (Alito, J., concurring).

2. Parents’ Rights Are Infringed Here. A social transition encompasses behaving—in all regards—as a member of the opposite sex. That includes adopting a new name and pronouns, adopting a new opposite-sex presentation (hair, clothes, makeup), and beginning to use sex-segregated facilities and participating in sex-segregated activities as a member of the opposite sex. 6-Plt.Exs-1321-22, 1349-51, 61 (expert report). Examining the Nation’s historical traditions, several courts have held that “parents retain a constitutionally protected right to guide their own children on matters of identity, including the decision to adopt or reject various gender norms and behaviors,” *Tennessee v. Cardona*, 737 F. Supp. 3d 510, 556 (E.D. Ky. 2024), and “to have a say in what a minor child is called and by what pronouns they are referred.” *Ricard v. Geary Cty. Unified Sch. Dist.* 475, No. 22-cv-4015, 2022 WL 1471372, *8 (D. Kan. May 9, 2022). Whether viewed under the traditional understanding of *in loco parentis*, or a more modern understanding, this right reaches into the schools. Parents only delegate authority over their children “under circumstances” when they “cannot

protect, guide, and discipline them.” *Mahanoy*, 594 U.S. at 192. They do not delegate authority to expand those circumstances and cut them out. More, parents only relinquish authority needed for the school to carry out its “educational mission,” *id.* at 198-200 (Alito, J., concurring)—they do not delegate the authority to make decisions regarding whether their child is a boy or a girl.

Like the above courts, the district court here rightly held that “when gender incongruence is observed ... parents have a right to be informed.” App.48a (emphasis omitted). In its stay order, the Ninth Circuit panel waved away the district court’s lengthy analysis based solely on a different circuit’s holding that a social transition “is not a form of *medical treatment* that gives rise to a substantive due process claim.” App.9a-10a (citing *Foote v. Ludlow Sch. Comm.*, 128 F.4th 336, 350-52 (1st Cir. 2025), *pet. for cert. pending* (No. 25-77)) (emphasis added).

The record here, however, contradicted this conclusion. Plaintiffs’ two experts characterized a social transition as a form of psychological treatment. *See* 6-Plt.Exs-1320, 1339-51, 1361-62; 6-Plt.Exs-1553-59. One expert even undertook a comprehensive review of Child Poe’s therapy records to explain why and how a school’s secret social transition of her should be considered unethical psychological treatment. 6-Plt.Exs-1557-65. California’s expert Darlene Tando explained that, “while being transgender is not a pathological condition, like a disease, it will be important for you [the parent] to look at your child’s being transgender as something concrete, *like a medical condition*.” 17-Plt.Exs-4249-50, 4253-55. Othertimes she directly said “I do believe being transgender *is a medical condition*,” 17-Plt.Exs-4259-60, and analogized

transgender status to needing supplemental oxygen, antibiotics, a cast for a broken arm, or cough syrup. 17-Plt.Exs-4256-58, 4266-69. California’s second expert, Christine Brady, similarly testified that “[b]y itself, social transition is psychologically beneficial and is a *medically recognized treatment* for gender dysphoria,” and that “[t]he treatment for gender dysphoria ... includes social affirmation of the individual’s preferred pronouns and names.” 20-Plt.Exs-5183, 5185; *see* 20-Plt.Exs-4951-56.

But as the district court explained, focusing on whether social transition is “medical” treatment is a “red herring.” App.48a. “The constitutional question is really not whether expressing gender incongruence is pathological or healthy, or, whether social transitioning is or is not a medical procedure.” App.47a. Rather, “the question is whether being involved in *potentially* serious medical or psychological decision-making for their school student is a parent’s constitutional right. It is.” App.48a (emphasis added).

3. This Case is Certworthy. There is a reasonable probability that four justices would grant certiorari and a fair prospect that five would reverse because, as the Court is aware, several challenges to various Parental Exclusion Policies are pending in the lower courts and this Court. Three such challenges have already been presented to this Court, but had jurisdictional and immunity defects that are not present in this case. *John & Jane Parents 1 v. Montgomery Cty. Bd. of Educ.*, 144 S. Ct. 2560 (2024) (denying certiorari) (dismissed on the basis that parents lacked standing); *Parents Protecting Our Children, UA v. Eau Claire Area Sch. Dist.*, 145 S. Ct. 14 (2024) (Kavanaugh, J., would grant the petition) (Alito, J., joined by Thomas, J., dissenting

from denial of certiorari) (dismissed on the basis that parents lacked standing); *Lee v. Poudre Sch. Dist. R-1*, -- S. Ct. --, No. 25-89, 2025 WL 2906469 (2025) (Alito, J., joined by Thomas, J., and Gorsuch, J., statement respecting denial of certiorari) (dismissed on the basis of *Monell*). Indeed, from those cases, four Justices have already indicated that the issues in this case are certworthy.

Many of the above cases were hard to address because some courts have resorted to procedural devices to evade a “particularly contentious constitutional question.” *Lee*, 2025 WL 2906469 (Statement of Alito, J.) (quoting *Parents Protecting Our Children*, 145 S. Ct. at 14-15 (Alito, J., dissenting) (brackets omitted)). But these cases will continue knocking on this Court’s door because of lower courts’ ongoing refusal to address the merits. See *Littlejohn v. Sch. Bd. of Leon Cty.*, 132 F.4th 1232 (11th Cir. 2025) (dismissal affirmed under “shocks the conscience” test), *pet. for cert pending* (No. 25-259); *Lavigne v. Great Salt Bay Cmty. Sch. Bd.*, 146 F.4th 115 (1st Cir. 2025) (dismissal affirmed on *Monell* grounds), *pet. for cert pending* (No. 25-759). Here, by contrast, there is an ample record on which the Court can rest modest emergency relief.

II. The Equitable Factors Favor Plaintiffs.

In addition to the merits, the court considers whether the applicant will “likely suffer irreparable harm absent the stay,” and “considers the equities.” *Merrill*, 142 S. Ct. at 880 (Kavanaugh, J., concurring). “[T]he loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.”

Mahmoud, 606 U.S. at 569 (quoting *Roman Cath. Diocese of Brooklyn v. Cuomo*, 592 U.S. 14, 19 (2020) (per curiam)).

Turning to the equities, the Ninth Circuit held that “the public interest in protecting students and avoiding confusion among schoolteachers and administrators weighs in favor of a stay.” App.13a. On its face, the district court’s order simply requires truthful communication with parents, which is how teachers and parents have communicated for decades. App.22a-25a. Allowing the district court’s order to go back into effect will therefore provide greater transparency and less confusion, not more. Rather, as the district court noted, “it is almost like the State Defendants [have been] trying to confuse the question,” App.34a, which is an old playbook.

An injunction also favors public safety. There was no meaningful disagreement among the parties’ experts as to safety, as the district court already found. App.49a-52a. Indeed, California’s expert Darlene Tando explained that “where a child is being referred to as a chosen gender in one environment, but not in a different setting, [it] can be ‘harmful’ in that it can ‘increase dysphoria, [and] increase mental health risks.’” App.51a (quoting 17-Plt.Exs-4207-08). Or as California’s second expert, Christine Brady, opined: “kids need support and help if they’re experiencing these mental health disparities.” App.50a (quoting 19-Plt.Exs-4920). And Plaintiffs presented undisputed evidence that the Child Poe attempted suicide *under* Defendants’ exclusion policies. App.58a-59a; 5-Plt.Exs-1240-45, 1252-67; 3-Plt.Exs-606-10.

Each day the Ninth Circuit stay remains in place, school employees are authorized or required to treat parents as outsiders to a child’s social transition at school—information that shapes how parents respond to mental-health risks, bullying, peer pressure, and family conflict.

III. Given the Importance and Urgency of the Issues, the Court May Construe this Application as a Petition for a Writ Of Certiorari.

Should the Court deem it inadvisable to grant emergency relief right away, the Court may treat this application as a petition for certiorari before judgment. As the Court knows, in addition to the three petitions referenced above, three more challenges to Parental Exclusion Policies are currently pending before this Court—in two of which the Circuit Court reached the merits, although none of them address Free Exercise rights. *Foote v. Ludlow*, No. 25-77 (petition for cert. filed July 18, 2025); *Littlejohn v. Sch. Bd. of Leon Cty. Fla.*, No. 25-259 (petition for cert. filed Sep. 3, 2025); see also *Lavigne v. Great Salt Bay Sch. Cmty. Bd.*, No. 25-759 (petition for cert. filed Dec. 22, 2025) (action dismissed on *Monell* grounds). The First Circuit in *Foote* and the Eleventh Circuit in *Littlejohn* both held that parents do not have a substantive due process right to direct their child’s gender transition. *Foote v. Ludlow Sch. Comm.*, 128 F.4th 336 (1st Cir. 2025); *Littlejohn v. Sch. Bd. of Leon Cty., Fla.*, 132 F.4th 1232 (11th Cir. 2025). The Fourth Circuit also rejected such a claim as part of a qualified immunity analysis. *Blair v. Appomattox Cty. Sch. Bd.*, 147 F.4th 484, 493 (4th Cir. 2025).

These decisions reveal an emerging split. In nearly every one of the above cases, the panel fractured, with judges writing separately to condemn Parental Exclusion

Policies. *John & Jane Parents 1 v. Montgomery Cty. Bd. of Educ.*, 78 F.4th 622, 639-43 (4th Cir. 2023) (Niemeyer, J., dissenting); *Littlejohn*, 132 F.4th at 1287-309 (Tjoflat, J., dissenting); *Lee*, 135 F.4th at 936-38 (McHugh, J., concurring); *Kaltenbach*, 2025 WL 1147577, *1-5 (Thapar, J., concurring). Further, at the trial court level, the district court here was only the latest of several to have ruled that such policies are unconstitutional. See *Ricard v. Geary Cty. Unified Sch. Dist.* 475, No. 22-cv-4015, 2022 WL 1471372, *8 (D. Kan. May 9, 2022); *T. F. v. Kettle Moraine Sch. Dist.*, No. 21-cv-1650, 2023 WL 6544917 (Wis. Cir. Ct. June 1, 2022). These cases have been percolating for long enough, and real children’s lives—including Child Poe and Child Doe—are irreparably at risk. If the Court is unable to grant emergency relief, it should instead set this case for plenary review.

CONCLUSION

The Court should vacate the Ninth Circuit’s interlocutory order staying the district court’s injunction until disposition of any petition for certiorari. In addition, given the importance and urgency of the issues, the Court may construe this application as a petition for a writ of certiorari before judgment.

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APPENDIX

Order of the United States Court of Appeals for the Ninth Circuit granting stay pending appeal, <i>Mirabelli v. Bonta</i> , No. 25-8056 (Jan. 5, 2026).....	1a
Order of the United States Court of Appeals for the Ninth Circuit granting administrative stay, <i>Mirabelli v. Bonta</i> , No. 25-8056 (Dec. 26, 2025).....	14a
Order of the United States District Court for the Southern District of California denying stay pending appeal, <i>Mirabelli v. Olson</i> , No. 23- cv-768 (Dec. 24, 2025).....	17a
Order of the United States District Court for the Southern District of California issuing a permanent injunction, <i>Mirabelli v. Olson</i> , No. 23-cv-768 (Dec. 22, 2025)	22a
Order of the United States District Court for the Southern District of California granting summary judgment, <i>Mirabelli v. Olson</i> , No. 23- cv-768 (Dec. 22, 2025).....	26a
Order of the United States District Court for the Southern District of California certifying the class, <i>Mirabelli v. Olson</i> , No. 23-cv-768 (Oct. 15, 2025).....	78a
Order of the United States District Court for the Southern District of California denying motion to dismiss action as moot, <i>Mirabelli v.</i> <i>Olson</i> , No. 23-cv-768 (Apr. 10, 2025)	91a
Order of the United States District Court for the Southern District of California denying motion to dismiss action for failing to state a claim, <i>Mirabelli v. Olson</i> , No. 23-cv-768 (Jan. 7, 2025)	97a
Order of the United States District Court for the Southern District of California issuing a preliminary injunction and denying motion to dismiss, <i>Mirabelli v. Olson</i> , No. 23-cv-768 (Sep. 14, 2023).....	123a